

Project # 568-21-701
EHRM Infrastructure Upgrades - FM, A/E CPS
Black Hills VA Health Care System – Fort Meade, SD

Statement of Work A/E Construction Period Services (CPS)

A. General Intention & Line-Item Tasks:

The Contractor (herein referred to as “A/E”) will provide Architect/Engineer (A/E) Construction Period Services (CPS) for the EHRM Infrastructure Upgrades - FM construction project for the Veterans Administration Medical Center (VAMC) known as the VA Black Hills Health Care System Fort Meade SD in accordance with this Scope of Work (SOW).

The five contractual line items below require pricing proposals with each consisting of the following specific parameters with # 5 as optional.

1. **Supplementary Construction Solicitation Support** – A/E construction solicitation services will consist of, but will not be limited to, responses to Requests for Information (RFI), issuance of Architectural Supplemental Instructions (ASI), specifications for amendments, and edited/new drawings in the proposal process. Many of these may require a quick A/E response time of 24 to 48 hours to support efficient solicitation. Moreover, this line item will include the direct (remote) participation in Pre-Bid conferences / (on-site) project walk-throughs for bidding purposes, providing answers to technical questions relevant to submitted proposals, participating in solicitation planning conferences (remote), issuing guidance on phasing implementation, and participation in the post-award Pre-Construction “kick-off” (on-site) and commissioning solicitation conferences (remote). As such, **one A/E two-person site visit** is anticipated during the solicitation phase transition into Construction Support Service (CPS).
 - The period of performance for this line item is approximately five (5) months.
2. **General Construction Period Services (CPS)** – General A/E construction period services (CPS) are required during the **three (3) year construction period of performance (POP)**. These services include the following items:
 - Response to construction contractor *Requests For Information* (RFIs), and to develop Requests for Proposal (RFPs), and Architectural Supplemental Instructions (ASI's) as required.
 - Attendance and engagement during the post-award and commissioning “kick-off” construction project conferences (one on site)
 - Review of the General Contractor (GC) material submittals, schematics, and shop drawings.
 - The A/E shall prepare a submittal log to be utilized by the VA during construction period services, maintain RFI log and provide meeting minutes for weekly construction meetings throughout the duration of construction.
 - Preparation of site visit inspection reports and project schedule assessments.
 - Assistance with verification of all GC commissioning tasks and requirements.
 - Review of any and all construction contract modifications under consideration for cost and technical acceptability.
 - Preparation of independent cost estimates for all construction change (contract modification) orders.

- A/E will coordinate final acceptance inspections for the project and prepare a “punch-list items” correction list administration of corrective actions.
- Technical facilitation of the transition, sequencing, and implementation of the various construction phases, in reference to each specific discipline.
- The A/E shall review the Construction Contractor's cost proposals for change orders /contract modifications when requested by the COR. The A/E's response will include an independent breakdown of costs in IGCE details, quantities, and unit prices and will consider both additions and/or deductions of labor, materials, and equipment.
- Administer and record notes at all weekly construction meetings and commissioning initiation conferences by discipline (by remote teleconference).
- Attendance and participation in **twenty-six (26) routine A/E site review visits during the entire (three-year) construction POP.** Generally, this should include at least one visit every 3 -month quarter to ensure compliance with the design drawings and specifications, preparation of site visit reports, resolution of technical issues, verification of project commissioning requirements, final acceptance, and detailed review for any potential construction project modifications.
- Pricing reflecting a single site visit for one (1) person shall be provided to help facilitate possible future modifications if additional site visits are required. Pricing shall be shown for each FY of planned construction (FY26 to FY29) planned construction award is FY26 Q1.
- Coordinate and administer the weekly Construction Conferences during the period of performance and provide all meeting minutes to the CO and COR.
- A/E will coordinate final acceptance inspections for the project and prepare a “punch-list items” correction list administration of corrective actions.
- A/E will make file transfer accommodations to the VA for prior to construction award. Presently, the VISN does not have a submittal exchange program to provide to the project. This is generally detailed to be provided by the GC under 01 33 23 “Submittal Format ad Transmission” section. The A/E can have the submittal log and other documents prepped, but we won’t have access to a program until after construction award is made.

3. **As-Built Validation** – Verify and complete the (as -built) final record drawing set from all red-line completed construction drawings. Provide final set of drawings in three forms: digitized (AutoCAD & Revit), mylar, and paper. Vendor will provide one complete mylar set and one complete paper set, both in sized ARCH E1 (30” x 42”). **One A/E two-person site visit** is anticipated during as-built validation.

- The period of performance for this line item is approximately five (4) months.

4. **Site Visits** – The line-item pricing for site visits should represent only Travel, Lodging, & Meals. All labor pricing to be including in other line items. Upon contract close-out, any unused site visits will become a deduction from the final contract pricing.

Category Line Item	# of Visits in Category Line Item	# of Vendor Personnel per trip	Pricing (per Visit)	Total Price for
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				Category Site Visits
Construction Solicitation	1	1	TBD	TBD
Construction Period Services (CPS) – (over 3-year period)	26	2	TBD	TBD
As-Built Validation	1	2	TBD	TBD

Total:	28			

5. **Full-Time Construction Inspector (CI) Support (* Optional*)** – Provide onsite Construction inspection services by a Qualified Construction Inspector (CI) during the full construction period to ensure compliance with the design drawings and specifications This will be an optional line item to provide a full-time CI, generally 40 hours per week, during the entire three-year construction period of performance (POP). All Part Two services are optional line items and will not be exercised at the time of award.

A. **Duties of the CI:**

- Conduct regular field investigation and inspects for adherence to life safety codes (ISLM, PCRA, ICRA) and construction documents.
- Perform construction quality control monitoring, testing, and inspection. Facilitate further review with subject matter experts as needed.
- Complete daily time logs, progress reports, and safety updates as requested by the Contracting Officer Representative (COR).
- Facilitate project commissioning through inspection/review/verification of commissioning specifications in conjunction with a 3rd party Commissioning agent.
- Assist with the preparation, estimating, and execution of change order requests.
- Confirm implementation of submittals as approved by COR.
- Provide digital photos and/or video logs of the construction progress at each stage as requested.
- Coordinate construction team request for information (RFI), and the response from the A/E and VA.
- Identification of long-lead items to facilitate with GC reasonable dates for delivery.
- Confirm close-out of document reviews, including punch-list documentation.
- Reviews all construction discipline drawings and specifications to confirm adherence.
- Assist the COR to identify impacted staff related to utility shutdowns, relocations, or operational adjustments.
- As requested, assist in having as-built drawings updated at the close of the construction project.
- Ensure the project success in terms of timeline, budget, patient safety, regulatory compliance, and operational readiness.
- Implements communication plan for meetings and written reports/meeting minutes to keep stakeholders and project resources informed.
- Provide coordination the COR and GC for moves, relocations, and temporary staging of staffing, materials, furniture, and equipment.

- As requested, provide assistance in planning for utility outages/relocations/special work zones, especially for telecommunication and information technology work tasks.
- B. **Qualifications of CI** – The chosen applicants updated resume' must be provided with the pricing information.
- At least five (5) years of specialized experience with Contract Inspection for long-term construction projects (> \$1M) with at least 2-years specialized experience in Information Technology/Digital Design for telecommunications.
 - Preferred candidate is an individual who is familiar with the Fort Meade VA Medical Center, or who has worked on-site previously.
 - Experience in preparing correspondence, written reports, and maintenance of project records.
 - Knowledge of the relevant construction practices and techniques, such as communication cable installation, termination, and connection to central equipment.
 - Ability to inspect materials, workmanship, and construction and installation of various systems for the various disciplines.
 - Knowledge of safety practices in the construction industry, including familiarity with Occupational Safety and Health Administration (OSHA) safety VA requirements for construction projects.
 - Ability to assess the adequacy of building systems related to their respective disciplines.
 - Ability to interpret/coordinate Architectural/Engineering plans and specifications. Experience in the inspection of materials, workmanship, and construction tasks, and installation of various systems (such as fire alarm systems) within the disciplines for the EHRM Infrastructure Upgrades project.
 - Familiarity with related the relevant construction disciplines, including Architectural, Structural, Mechanical, Civil, Electrical, and Communication.
 - Familiarity with International Building Code, NFPA (including NFPA 101 Life Safety Code), OSHA, Joint Commission, and general healthcare design.
 - Ability to review and apply technical guidance from the VA Master Specifications, Design Guides, and Design Manuals.

B. Security - The Contractor shall adhere to the following security requirements:

All A/E personnel that may have to perform work on-site shall go through the necessary background checks and training to receive a VA PIV badge for the duration of the project. Personnel who already have a VA PIV badge need to maintain a valid badge for the duration of the project. PIV process includes:

- Complete T1/NACI Background Checks
- SAC (Fingerprinting)
- Obtain PIV Badges
- Complete the following TMS Courses:
 - TMS 10176 INFOsec/ROB
 - TMS 20939 No Access
- Adhere to the following sections of the IT Contract Security Clause below:
 - (1) General Security/Privacy Clause.

- (2) Access to VA Information and VA Information Systems Clause
- (3) VA information Custodial Language Clause.
- (4) Information System Hosting, Operation, Maintenance, or Use Clause.
- (5) Security Incident Investigation Clause.
- (6) Liquidated Damages for Data Breach Clause.
- (7) Training Clause.

C. Project Background:

The EHRM Infrastructure Upgrades project is presently under a solicitation process for Construction Services as conveyed in the construction drawings, specifications, and calculation documents packaged under a separate solicitation. Those design documents were prepared and assembled by GDM of Oregon (GDM Architects & Engineers). However, the A/E contract was closed out as the construction procurement had to be reinitiated. Our preference is to secure the A/E of record (GDM of Oregon) for *A/E Construction Period Services (CPS)*, including:

1. Construction Solicitation Support
2. A/E Construction Period Services
3. As-Built Validation,
4. Site Visits,
5. Full-time Construction Inspection (optional)

Copies of all EHRM construction solicitation documents will be confirmed/provided to the A/E.

This revised scope of work for A/E CPS will be employed concurrently with the construction initiative as it supports the pending construction endeavor during the entire three (3) year period of performance (POP).

The EHRM Infrastructure Upgrades – FM project will include construction of new Telecommunication Rooms (TR's) / equipment, relocation of existing TR infrastructure to new TR, reconfiguration of existing spaces where new TR's will be located, new redundant fiber cables and data infrastructure for the internal network, new fiber backbone external communication ring around campus, new Main Computer Room (MCR), relocation of existing IT office space, and new centralized UPS system.

This A/E CPS contract supports successful project implementation as the Construction Contractor provides all labor, materials, and equipment to accomplish the "EHRM Infrastructure Upgrade - FM" project per construction drawings and specifications. The project shall be accomplished per contract drawings and specifications, all numbered with Project # 568-21-701.

D. VAAR Magnitude of Construction Cost Value between \$20,000,000 and \$50,000,000

E. General Contractual Requirements:

1. Sensitivity of Information: The sensitivity of information relating to this project is emphasized. All of the information in this SOW will be treated as For Official Use Only. This information is not to be distributed without a confirmed need to know as confirmed by the VA.
2. The A/E will be solely responsible for the management, including all associated labor, equipment, materials, mailing costs, and inspection, to meet the full requirements of the CPS contract. The A/E will further provide meeting minutes for all meetings held under CPS contract.
3. The project will adhere to the CPS budget requirements. If at any time, the A/E CPS costs estimate is over the budget, the A/E will notify the Contracting Officer (CO) and Contracting Officer's Representative (COR) immediately. VABHCS and leadership will inform of priorities, and it will be the A/E's responsibility to find solutions to balance the scope of work and costs to complete the CPS contract. The A/E will perform market research in addition to their standard operating procedure for estimating accuracy in the Service-Disabled Veteran Owned Small Business (SDVOSB) construction market. The cost estimate should include enough money for the General Conditions that the VA requires of the contractor; specifically, the personnel that are required.
4. A/E of record will remain responsible for the quality of the design throughout construction implementation. If a determination by the COR/CO is made regarding a design error/omission and/or a constructability problem that justifies a site inspection, the A/E will inspect the field condition within three (3) Business days of the COR's request. This will be at no additional cost to the Government as the problem arose due to quality of the design product. Reliance on construction contractor and/or Contract Inspector to field verify or reliance on VA as built/record drawings is unacceptable. A/E firm of record is responsible for the successful design and construction implementation.
5. Dedicated Meetings – All CPS contract meetings will be of remote character (TEAMS) with the hosting and set-up coordination the responsibility of the VA. The exception will be for specific on-site meetings that will benefit from direct a physical review with the rest of the project team. Refer to the above required Site Meetings table for pricing the proposal.
 - Additional site visits required by the A/E CPS team are at the discretion of the bidder and shall be bid appropriately.
6. The A/E firms' representatives performing site investigations on the VA Medical Center campus must adhere to all facility safety and security policies before starting site investigations on campus:
 - All A/E firm employees and/or subcontractors must receive an approved visitor badge to have escorted access to the VA Medical Facility.
 - Refer to VA Specification Division 01 General Requirements

- All employees of the A/E (or subcontractors) will have the 10-hour OSHA certified Construction Safety course and /or other relevant competency training, as determined by VA Competent Person (CP) with input from the ICRA team.
 - Submit required training records of all such employees for approval before the start of work.
- 7. The A-E will arrange with the VA COR all site visits, remote conferences, phone calls with appropriate disciplines/stakeholders/subject matter experts (SME) as they deem necessary to administer the CPS tasks associated with the EHRM Infrastructure construction contract.
- 8. All investigative/inspection on-site work tasks will be accomplished in strict compliance with the most recent edition of VHA Directive 7715 & 1028, OSHA; NFPA-70E, 2024 Edition (Standard for Electrical Safety in the Workplace); and IEEE 242-2001, Recommended Practice for Protection and Coordination of Industrial and Commercial Power Systems (IEEE Buff Book).
- 9. All CPS survey site work associated with the commissioning process will be accomplished on fully functional operational equipment / areas unless a utility service outage is required due to specific equipment or safety conditions. The General Contractor for the EHRM construction contract will request and coordinate for outages. All service outage scheduling will be done at the convenience of the VAMC.
- 10. Appropriate personal protective equipment (PPE), including applicable arc flash protection, will be used where it is necessary to complete invasive inspections/reviews, such as the removal of covers/opening equipment.
- 11. **Discrepancies in Planning Information:** The A-E will promptly report to the Contracting Officer in writing any discrepancies between this contract the EHRM Infrastructure construction contract. The A-E will make no adjustments to his work due to the discrepancy before the Contracting Officer has reviewed the matter and forwarded his determination to the A/E. The A/E's failure to report any such discovered discrepancy or to wait for the Contracting Officer's determination will be at his risk and expense.
- 12. **Change Orders:** Any work that is not addressed by the contract line items and is considered a change order will be immediately brought to the attention of the Contracting Officer. No "out-of-scope" or additional work will be executed by the A/E prior to negotiation and approval with the Contracting Officer.
- 13. **Ownership of Documents, Drawings, Reports, and Issuances:** All documentation (hardcopy and electronic), including RFI responses, ASI's, Phasing Guidance, Commissioning Support, drawings, notes, minutes, and other work developed in the performance of this contract will be and remains the sole property of the Government and may be used on any other work without additional compensation to the A-E. With respect thereto, the A-E agrees not to assert any rights and not to establish any claim under the design patent or copyright laws.

F. References: The A-E will provide the stated CPS line-item services in accordance with the referenced project design package documents, specifications, and guidelines as available at <http://www.cfm.va.gov/til/spec.asp> and from the summary list below.

This project will adhere to the versions, editions, and volumes of all applicable parameters that were valid at the time of the original design award (**September 27, 2021**)

If a newer version is adopted that contains vital or other important information that is relevant to the project, the A/E will submit a review request to the VA CO/COR for a possible modification (MOD) to the construction contract. This includes, but is not limited to, items such as the following:

1. NFPA, NEC, NESC, and Life Safety Code
2. International Building Codes, State and Federal Regulations, ASHRAE, OSHA Standards
3. VA Infrastructure Standard for Telecommunication Spaces (ISTS)
4. VA Office of Information Technology (OIT) Manual
5. VA Electrical Design Manual
6. PSDRM 6500 - Physical Security and Resiliency Design Manual
[dmPhySec.pdf \(va.gov\)](#)
7. Master Construction Specifications [MASTER CONSTRUCTION SPECIFICATIONS - Office of Construction & Facilities Management \(va.gov\)](#)

G. Anticipated Tentative Schedule

(Based on an anticipated EHRM Infrastructure construction solicitation issuance of D = 8/1/2025). Actual dates may vary slightly.

<i>Solicitation Support</i>	Construction Period Services (CPS)	<u>As-Built Validation</u>
<u>Milestone</u>		<u>Target Date</u>
1. A/E CPS Contract Award = D-30 days		(7/1/2025)
2. EHRM Construction Solicitation Issuance = D		(8/1/2025)
3. Construction Solicitation Q/A Support = D+30		(8/1/2025 – 8/30/2025)
4. Construction Proposals Assessment = D+45		(9/1/2025 - 9/15/2025)

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| 5. <i>Construction Proposal Negotiation Support/Award</i> = D+60 | (9/16/2025 - 11/1/2025) |
| 6. Construction Notice to Proceed = D+80 | (12/1/2025) |
| 7. Construction / CPS = D+1160 | (12/1/2025 - 12/1/2028) |
| 8. <u>As-Built Validation</u> = D+1250 | (12/1/2028 – 4/1/2029) |
| 9. Contract Close-Out – D+1281 | (4/1/2029) |

- The anticipated period of performance for this A/E CPS contract is 45 months.

H. NARA Language for Contracts

1. Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.
2. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.
3. In accordance with 36 CFR 1222.32, the Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.
4. VHA and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of VHA or destroyed except in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage, or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, the Contractor must report to VHA. The agency must report promptly to NARA in accordance with 36 CFR 1230.
5. The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records, or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [**contract vehicle**]. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records, and/or equipment is

properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records, and/or equipment is no longer required, it shall be returned to VHA control, or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand-carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the [**contract vehicle**]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

6. The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material, and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and VHA guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.
7. The Contractor shall not create or maintain any records containing any non-public VHA information that is not specifically tied to or authorized by the contract.
8. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.
9. The VHA owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which VHA shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.
10. **Training.** All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take VHA-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including **initial** training and **annual/refresher** training.
11. *Flow down of requirements to subcontractors.*
 - a. The Contractor shall incorporate the substance of this clause, its terms, and requirements including this paragraph, in all subcontracts under this [**contract vehicle**], and require written subcontractor acknowledgment of same.
 - b. Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.

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